2012 SEP 19 PM 12:11

Bernard J. Youngblood
Wayne County Register of Deeds
September 19, 2012 12:11 PM
Inst:2012384797 MTG Pages:5
Liber:50150 Page:1091

MORTGAGE

OLNACS # 16140198

This is a Future Advance Mortgage
(For Installment Loan Note)

PNC BANK

This document was prepared by, and after recording, return to:
PNC Bank, P.O. Box 5570, Loc. #BR-YB58-01-6, Cleveland, OH 44101.
Prepared by: Stephanie Kibler, Bank Officer

1. Date of this Mortgage: **09/08/2012**

2. Name, address and, if male, marital status of each Mortgagor:
JAMES P CIPRIANI, 35951 STELLWAGEN ST WAYNE MI 48184, MARRIED
BARBARA CIPRIANI, 35951 STELLWAGEN ST WAYNE MI 48184, MARRIED

3. Name and address of the Mortgagee: **PNC Bank, National Association**
35215 WEST MICHIGAN AVENUE WAYNE MI 48184

4. Legal Description: See Attached Exhibit A

5. This is the first page of, and is part of, the Mortgage.

THIS MORTGAGE is made on **09/08/2012** .
The name, address and, if a male, the marital status of each Mortgagor are **JAMES P CIPRIANI, BARBARA CIPRIANI.**

If there is more than one, the word "Mortgagor" herein refers to each and all of them.
The name and address of the Mortgagee are **PNC Bank, National Association**

35215 WEST MICHIGAN AVENUE WAYNE MI 48184

The word "Borrower" means **JAMES P CIPRIANI, BARBARA CIPRIANI.**

If there is more than one, the word "Borrower" herein refers to each and all of them.

The maximum principal amount of indebtedness excluding protective advances secured by this Mortgage at any one time shall not exceed Twenty-nine Thousand Dollars And Zero Cents

(U.S. $ 29,000.00)

(referred to herein as the "Principal Amount"). This limitation of amount does not include interest, other fees and charges, or protective advances validly made pursuant to this Mortgage. Protective advances are defined by law and include an expenditure or expenditures such as advancements made under the terms of the Note secured by this Mortgage and this Mortgage to protect Mortgagee's priority and advances made to fulfill or perform an obligation of the Borrower or Mortgagor under the Note or this Mortgage, with respect to the Property, that the Borrower and Mortgagor have failed to perform.

This Mortgage secures to Mortgagee: (a) the repayment of the debt evidenced by Borrower's written obligation to Mortgagee (referred to herein as the "Note"), dated **09/08/2012** , which debt is in the Principal Amount shown above; (b) the payment of all protective advances, with interest thereon, advanced hereunder for the payment of taxes, assessments, maintenance charges, insurance premiums and costs incurred to protect the security of this Mortgage; (c) the payment of all of Mortgagee's costs of collection, including costs of suit and, if permitted by law, reasonable attorneys' fees and expenses to the maximum extent permitted by law, if suit is filed or other action is taken to collect the sums owing or to protect the security of this Mortgage; (d) payment of any refinancing, substitution, extension, modification, and/or renewal of any said indebtedness, interest, charges, costs and expenses; (e) the performance of Mortgagor's and/or Borrower's covenants and agreements under this Mortgage and the Note; and (f) the repayment of the debt evidenced by any agreement which was replaced by the Note, to the extent that such debt is owed to Mortgagee and has not been paid. For this purpose, in consideration of the aforesaid debt and for the better securing payment of the same, with interest, as aforesaid and costs and counsel fees, Mortgagor does hereby mortgage, grant, warrant and convey to Mortgagee, with the power of sale, the following described property, together with all improvements now or hereafter erected, and all easements, rights and appurtenances thereon, located and known as:

35951 STELLWAGEN ST
WAYNE MI 48184 WAYNE

Recording Date		**06/26/1963**	
Deed Book Number	**15063**	**Page Number**	**756**
Tax Parcel Number	**55016040081002**		
Lot and Block Number	**N/A N/A**		

The word "Property" herein shall mean all of the foregoing mortgaged property.

To have and to hold the Property unto the Mortgagee, its successors and assigns, forever. Provided, however, that if the Mortgagor and/or Borrower shall pay to Mortgagee the said debt, interest, and all other sums, and perform all covenants and agreements secured hereby, then and from thenceforth, as well, this present Mortgage and the estate hereby granted and conveyed by it shall cease, determine and become void and of no effect, anything hereinbefore contained to the contrary thereof, in anywise notwithstanding.

Warranty of Title. Mortgagor warrants and represents to Mortgagee that: (a) Mortgagor is the sole owner of the Property, and has the right to mortgage and convey, with the power of sale, the Property; (b) the Property is unencumbered except for encumbrances now recorded; and (c) Mortgagor will defend the title to the Property against all claims and demands except encumbrances now recorded.

Payments. Any Mortgagor who is also a Borrower agrees and promises that all payments due on the Agreement will be paid when due and as agreed.

Covenants. Mortgagor promises and agrees as follows: (a) Mortgagor will maintain the Property in good order and repair; (b) Mortgagor will comply with all laws respecting the ownership and/or use of the Property; (c) If the Property is part of a condominium or planned unit development, Mortgagor will comply with the Declaration and Code of Regulations and all other by-laws, regulations and restrictions of record; (d) Mortgagor will pay and/or perform all obligations under any mortgage, lien, or security agreement which has priority over this Mortgage; (e) Mortgagor will pay or cause to be paid all taxes and other charges assessed or levied on the Property when due and, upon Mortgagee's request, will deliver to the Mortgagee receipts showing the payment of such charges; (f) While any part of the debts secured by this Mortgage remain unpaid, Mortgagor promises to obtain and keep in force property insurance and, if required by federal law, flood insurance on the Property. The property insurance must cover loss of or damage to the Property and must be in an amount sufficient to protect Mortgagee's interests; flood insurance must be of the type and in the amount required by federal law. Mortgagor agrees to provide Mortgagee evidence of required insurance. All policies must name Mortgagee as a loss payee/secured party and must provide for at least 10 days written notice to Mortgagee of reduction in coverage or cancellation. Mortgagor gives Mortgagee the right and power to sign Mortgagor's name on any check or draft from an insurance company and to apply the money to any debt secured by this Mortgage. This is limited to checks and drafts in payment of a claim under an insurance policy for loss or damage to the Property or for returned or rebated premiums on policies insuring the Property. Mortgagor does not have the right to, and agrees that Mortgagor will not, revoke the power of the Mortgagee to make Mortgagor's endorsement. Mortgagee may exercise the power for Mortgagee's benefit and not for Mortgagor's benefit, except as otherwise provided by law; (g) if Mortgagor fails to keep in force the required insurance and/or fails to provide evidence of such insurance to Mortgagee, Mortgagee may notify Mortgagor that Mortgagor should purchase the required insurance at Mortgagor's expense. If Mortgagor fails to purchase the insurance within the time stated in the notice and/or fails to provide evidence of such insurance to Mortgagee, Mortgagee may purchase insurance to protect Mortgagee's interest, to the extent permitted by applicable law, and charge Mortgagor the cost of the premiums and any other amounts Mortgagee incurs in purchasing the insurance. THE INSURANCE MORTGAGEE PURCHASES WILL BE SIGNIFICANTLY MORE EXPENSIVE AND MAY PROVIDE LESS COVERAGE THAN INSURANCE MORTGAGOR COULD PURCHASE OTHERWISE. Mortgagee may receive reasonable compensation for the services which Mortgagee provides in obtaining any required insurance on Mortgagor's behalf. In certain states, the required insurance may be obtained through a licensed insurance agency affiliated with Mortgagee. This agency will receive a fee for providing the required insurance. In addition, an affiliate may be responsible for some or all of the underlying insurance risks and may receive compensation for assuming such risks. If Mortgagor fails to perform any other duty or obligation required by these Covenants, Mortgagee may, at its sole option, advance such sums as it deems necessary to protect the Property and/or its rights in the Property under this Mortgage. Mortgagor agrees to repay Mortgagee any amounts advanced in accordance with this paragraph, with interest thereon, upon demand; (h) Any interest payable to Mortgagee after a judgment is entered or on additional sums advanced shall be at the rate provided for in the Note; (i) Mortgagee may make reasonable entries upon and inspections of the Property after giving Mortgagor prior notice of any such inspection; (j) Mortgagor will not sell, transfer ownership in, or enter into an installment sale contract for the sale of all or any part of the Property; (k) The promises, agreements and rights in this Mortgage shall be binding upon and benefit anyone to whom the Property or this Mortgage is transferred. If more than one Mortgagor signs this Mortgage, each and all of them are bound individually and together. The covenants made in this section and Mortgagee's remedies set forth below shall not merge with any judgment entered in any legal action and shall apply until all amounts owed are paid in full.

Default. Mortgagor will be in default under this Mortgage: (a) if there is a default under the Note; (b) if Mortgagor breaks any promise made in this Mortgage; (c) if any Mortgagor dies; (d) if any other creditor tries to take the Property by legal process; (e) if any Mortgagor files bankruptcy or if anyone files an involuntary bankruptcy against any Mortgagor; (f) if any tax lien or levy is filed or made against any Mortgagor or the Property; (g) if any Mortgagor has made any false statement in this Mortgage; or (h) if the Property is destroyed, or seized or condemned by federal, state or local government.

Mortgagee's Remedies. In some instances, federal and state law will require Mortgagee to provide Mortgagor with notice of the right to cure or other notices and may establish time schedules for foreclosure actions. Subject to these limitations, if any, Mortgagee may accelerate the maturity of the debt secured by this Mortgage and foreclose this Mortgage in a manner provided by law if Mortgagor is in default.

At the option of the Mortgagor, all or any part of the agreed fees and charges, accrued interest and principal shall become immediately due and payable, after giving notice required by law, upon the occurrence of a default or any time thereafter. In addition, Mortgagor shall be entitled to all the remedies provided by law, the terms of this Mortgage, the terms of the Agreement and any related documents including without limitation, the power to sell the Property.

If there is a default, Mortgagee may, in addition to any other permitted remedy, invoke the power of sale and sell the Property as a single parcel or in such parcels (and in such order) as the Mortgagee may direct at public sale to the highest bidder. If Mortgagee invokes the power of sale, Mortgagee shall give notice of the sale as prescribed by applicable law in effect at the time of the proposed sale. Mortgagee or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the manner prescribed by applicable law.

All remedies are distinct, cumulative and not exclusive, and the Mortgagee is entitled to all remedies provided at law or equity, whether or not expressly set forth. The acceptance by Mortgagee of any sum in payment or partial payment on the debt secured by this Mortgage after the balance is due or is accelerated or after foreclosure proceedings are filed shall not constitute a waiver of Mortgagee's right to require complete cure of any existing default. By not exercising any remedy on default, Mortgagee does not waive Mortgagee's right to later consider the event a default if it continues or happens again.

Delay in Enforcement. Mortgagee can delay in enforcing any of its rights under this Mortgage or the Note without losing that right. Any waiver by Mortgagee of any provision of this Mortgage or the Note will not be a waiver of the same or any other provision on any other occasion.

Assignment. Mortgagee may sell, transfer or assign this Mortgage without Mortgagor's consent.

Severability. If any provision of this Mortgage is held to be invalid or unenforceable, such determination shall not affect the validity or enforceability of the remaining provisions of this Mortgage.

Notices. Unless otherwise required by law, any notice by Mortgagee to Mortgagor shall be given by delivering it or mailing it by first class mail to the address of the Property, or to such other address specified by Mortgagor in writing to Mortgagee. Notice to one Mortgagor will be deemed notice to all Mortgagors.

Signatures. By signing below, Mortgagor agrees to the terms and covenants contained in this Mortgage and in any attachments. Mortgagor also acknowledges receipt of a copy of this Mortgage on the date stated on page 1.

James P. Cipriani
Mortgagor's Signature

Barbara Cipriani
Mortgagor's Signature

JAMES P CIPRIANI
Type Mortgagor's Name

BARBARA CIPRIANI
Type Mortgagor's Name

Acknowledgment:
State of Michigan, County of Wayne } ss
This instrument was acknowledged before me this 8th day of September 2012
by James P Cipriani married and Barbara Cipriani married.

(Seal)

Annette Kappeler ANNETTE KAPPELER
Notary Public, State of Michigan
County of Wayne
My commission expires Nov 12 2014
Acting in the County of Wayne

Annette Kappeler
Notary Public, State of Michigan
County of Wayne
My Commission Exp. Nov. 12, 2014

wayne

EXHIBIT A

SITUATED IN THE CITY AND COUNTY OF WAYNE AND STATE OF MICHIGAN:

THE WEST 50 FEET OF LOTS 81, 82 AND 83, INCLUDING THE EASTERLY 1/2 OF VACATED WALKER STREET (FORMERLY BROADWAY AVENUE) 50 FEET WIDE, LYING WESTERLY OF AND ADJOINING SAID WEST 50 FEET OF LOTS 81, 82 AND 83, ALSO INCLUDING THE SOUTH 1/2 OF VACATED STELLWAGEN AVENUE (50 FEET WIDE) LYING NORTHERLY OF AND ADJOINING THE NORTHERLY LINE OF THE WEST 50 FEET OF LOT 81 AS ORIGINALLY PLATTED, HENRY SCHLINDER'S SUBDIVISION NO. 1 OF LOTS 76, 77, 78, 79 AND 80 OF HENRY SCHLINDER'S SUBDIVISION OF PART OF SOUTHEAST 1/4 OF SECTION 32, TOWN 2 SOUTH, RANGE 9 EAST, NANKIN TOWNSHIP, WAYNE COUNTY, MICHIGAN, ACCORDING TO THE PLAT THEREOF AS RECORDED IN LIBER 56, PAGE 61 OF PLATS, WAYNE COUNTY RECORDS.

PPN: 55016040081002
JAMES P. CIPRIANI AND BARBARA CIPRIANI, HIS WIFE

35951 STELLWAGEN STREET, WAYNE MI 48184
Loan Reference Number : ID2016140198/ID2016140198663137652
First American Order No: 45473750
Identifier:

